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SECRETARY OF THE AIR FORCE



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IMPLEMENTATION OF, AND COMPLIANCE WITH, INTERNATIONAL ARMS CONTROL AND NONPROLIFERATION AGREEMENTS

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This Instruction implements Air Force Policy Directive 16-6, *International Arms Control and Nonproliferation Agreements and the Department of Defense Foreign Clearance Program*. It establishes the requirements for implementing and complying with international arms control and nonproliferation agreements. This Instruction is consistent with Air Force Policy Directive 13-5, *Air Force Nuclear Mission*, and incorporates guidance to ensure related publications remain consistent with Air Force Policy Directive 13-5 and Air Force priorities for the nuclear mission. It applies to all Regular Air Force, Air National Guard, and Air Force Reserve personnel involved in the acquisition, operation, and support of weapon systems or equipment that are affected by international arms control and nonproliferation-related agreements (referred to hereafter as arms control agreements). This publication may be supplemented at any level, but all supplements must

be routed to the Office of Primary Responsibility listed above for coordination prior to certification and approval. Refer recommended changes and questions about this publication to the Office of Primary Responsibility listed above using the Air Force Form 847, *Recommendation for Change of Publication*; route Air Force Forms 847 from the field through the appropriate chain of command. The authorities to waive wing/unit level requirements in this publication are identified with a Tier ("T-0, T-1, T-2, T-3") number following the compliance statement. See Air Force Instruction 33-360, *Publications and Forms Management*, for a description of the authorities associated with the Tier numbers. Submit requests for waiver through the chain of command to the appropriate Tier waiver approval authority, or alternately, to the requestors commander for non-tiered compliance items. Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with Air Force Manual 33-363, *Management of Records*, and disposed of in accordance with Air Force Records Information Management System Records Disposition Schedule.

(AFSPC) This supplement implements and extends the guidance of AFI 16-601, *Implementation of, and Compliance With, International Arms Control and Nonproliferation Agreements*. This supplement describes Air Force Space Command (AFSPC) procedures for use in conjunction with the basic AFI. This Supplement applies to AFSPC and its subordinate units. This publication applies to the Air National Guard and the Air Force Reserve Command and their units. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using Air Force Form 847, *Recommendation for Change of Publication;* route AF Forms 847 from the field through the appropriate functional's chain of command. Users of this instruction must notify HQ AFSPC/A8XB of conflicts between this instruction and other directives and/or instructions. This publication may be supplemented by lower organizational elements. The authorities to waive wing/unit-level requirements in this publication are identified with a Tier ("T-0, T-1, T-2, T-3") number following the compliance statement. See AFI 33-360, *Publications and Forms Management*, for a description of the authorities associated with the Tier numbers. Submit requests for waivers through the chain of command to the appropriate Tier waiver approval authority. Requests for waivers to this supplement for non-tiered compliance items must be submitted through the chain of command to the OPR listed above for consideration and approval. Ensure that all records created as a result of processes prescribed in this publication are maintained IAW with AFMAN 33-363, *Management of Records*, and disposed of in accordance with the Air Force Records Information Management System Records Disposition Schedule. Contact supporting records managers as required.

SUMMARY OF CHANGES

This instruction has been revised and requires a complete review. This revision modifies language to reflect the updated roles for each Air Force organization responsible for implementing and complying with international arms control and nonproliferation agreements. It also incorporates the education and training guidance formerly found in Air Force Instruction 16-603, *Education and Training Requirements for Implementation of, and Compliance with, Arms Control Agreements.*

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Chapter 1

BACKGROUND ON AIR FORCE ARMS CONTROL IMPLEMENTATION AND COMPLIANCE

1.1. Background. Title 10, United States (U.S.) Code outlines policy and responsibilities for Department of Defense (DoD) implementation of, and compliance with, arms control agreements of the United States Government. DoD Directive 2060.1, *Implementation of, and Compliance with, Arms Control Agreements,* directs DoD Components, including the Air Force, to ensure compliance and establish guidance for all applicable arms control agreements. Headquarters Air Force Mission Directive 1-60, *Strategic Deterrence and Nuclear Integration*, and Air Force Policy Directive 16-6 assign the Deputy Chief of Staff, Strategic Deterrence and Nuclear Integration (AF/A10) with the responsibility for developing and synchronizing guidance, policy, and strategies for Air Force arms control implementation. This instruction further specifies Air Force responsibilities and procedures for arms control implementation and compliance.

Chapter 2

ROLES AND RESPONSIBILITIES

2.1. The Deputy Chief Staff, Strategic Deterrence and Nuclear Integration (AF/A10) shall:

2.1.1. Serve as the Air Force Implementation and Compliance Review Manager for each arms control agreement to include all aspects of the Air Force arms control process.

2.1.2. Provide Air Force support to arms control negotiations; policy and guidance formulation; education and training; manpower matters; and program budgeting and execution.

2.1.3. Coordinate across Headquarters Air Force as primary Air Force representation to the Joint Staff for U.S. Government negotiations of new or modified arms control treaties and agreements.

2.1.4. Prepare for the implementation of arms control agreements before they enter into force to ensure full Air Force compliance with arms control and nonproliferation agreement provisions.

2.1.5. Ensure the compliance of Air Force arms control and nonproliferation agreements according to general procedures and guidance issued by the Office of the Secretary of Defense Treaty Manager and, as appropriate, to military guidance provided by the Chairman of the Joint Chiefs of Staff.

2.1.5.1. Provide guidance, in coordination with the Secretary of the Air Force General Counsel (SAF/GC), on the interpretation and implementation of arms control agreements.

2.1.5.2. Coordinate with the appropriate MAJCOM and Headquarters Air Force organizations on all matters pertaining to arms control and nonproliferation agreement provisions.

2.1.5.3. Provide oversight and monitor implementation of reporting systems for treaties requiring the gathering and reporting of data.

2.1.5.4. Submit compliance reports upon direction to the Office of the Secretary of Defense Treaty Manager and coordinate information from applicable organizations.

2.1.5.5. Represent the Air Force on DoD Implementation Working Groups established for each arms control and nonproliferation agreement.

2.1.6. Provide information to appropriate organizations, respond to congressional requests regarding arms control and nonproliferation agreement impacts on the Air Force, and support testimony on the status of Air Force preparations for implementation and compliance, as required.

2.1.7. Assist the Office of the Secretary of Defense and the Office of the Assistant Secretary of the Air Force for Acquisition (SAF/AQ), with their arms control-related acquisition responsibilities.

2.1.8. Support Department of Energy, Office of the Secretary of Defense, Defense Threat Reduction Agency, and Air Force organizations in the Research, Development, Test, and Evaluation of new arms control and verification technologies.

2.1.9. Coordinate with the appropriate Headquarters Air Force office and/or Program Manager on Air Force Research, Development, Test, and Evaluation of certain capabilities to ensure arms control and nonproliferation agreement provisions are implemented while mitigating impact on Air Force acquisition programs.

2.1.9.1. Review requirement documents, through the Information and Resource Support System, to ensure Air Force compliance with arms control and nonproliferation agreements.

2.1.9.2. Review relevant program documentation of Air Force acquisition programs for arms control and nonproliferation agreement compliance prior to each milestone review and at any time that compliance concerns arise during the program's life cycle. It is the responsibility of each Program Manager to ensure their program is reviewed for arms control compliance, in accordance with Air Force Instruction 63-101/20-101, *Integrated Lifecycle Management*.

2.1.9.3. Provide a certificate of review to the Program Manager and appropriate legal personnel (i.e., SAF/GC for programs reviewed at the Headquarters Air Force level and the servicing legal office for those reviewed at acquisition centers) once the review is complete.

2.1.9.4. Review force structure planning with Deputy Chief of Staff, Strategic Plans & Requirements (AF/A5/8) to ensure arms control and nonproliferation agreement compliance while maintaining flexibility in force structure employment.

2.1.10. Provide oversight for funding provided by the Headquarters Air Force arms control Program Element Code 35145F, identify a Program Element Monitor, and track Air Force arms control funding execution.

2.1.10.1. Submit requirements, planning and programming data to AF/A5/8, and year of execution financial requests to the Assistant Secretary of the Air Force, Financial Management & Comptroller (SAF/FM).

2.1.10.2. Provide resource information on arms control implementation and compliance to the Department of Defense Treaty Managers, Office of the Under Secretary of Defense Comptroller/Chief Financial Officer (OUSD(C)/CFO), Office of the Under Secretary for Defense Policy (OUSD(P)), and as necessary, the Office of the Under Secretary of Defense for Personnel and Readiness (OUSD(P&R)).

2.1.10.3. Submit arms control related planning and programming inputs to AF/A5/8 for future force structure requirements. Coordinate as required with SAF/FM and AF/A5/8 to ensure inputs are captured in the President's Budget submission to Congress.

2.1.10.4. Structure resource actions that involve the implementation of, and compliance with, international arms control and nonproliferation agreements to clearly identify/distinguish any funds uniquely used for these purposes.

2.1.10.5. Coordinate and conduct the budgeting, allocation, reprogramming and approval of MAJCOM funding to execute arms control activities through Program Element Code 35145F.

2.1.11. Oversee arms control manpower authorizations, ensure authorizations match logistical requirements, and work with MAJCOM treaty offices on the location of authorizations to match arms control and nonproliferation agreement requirements.

2.1.11.1. Coordinate any adjustments to MAJCOM manpower programming in relation to arms control and nonproliferation agreements.

2.1.11.2. Provide arms control inputs to the Deputy Chief of Staff, Manpower, Personnel and Services (AF/A1), to determine future manpower requirements and ensure they are captured in the President's Budget submission to Congress.

2.1.11.3. Centrally manage arms control authorizations (identified and resourced in Program Element Code 35145F at MAJCOMs, Wings, and other organizations as these authorizations are not under the control of MAJCOM planners. MAJCOM planners must ensure they have the appropriate authorizations assigned to support MAJCOM headquarters and subordinate Wing/Unit arms control requirements.

2.1.12. Manage overarching education and training for arms control-related activities within the Air Force, to include providing education and training for Headquarters Air Force and MAJCOM personnel.

2.1.13. Serve as the Office of Primary Responsibility for the Air Force Treaty Compliance Officer Recognition Program (see Paragraph 3.1).

2.1.14. Designate in writing to the Under Secretary of Defense for Acquisition and Sustainment USD(A&S) an implementation and compliance review manager for each arms control agreement.

2.2. The Assistant Secretary of the Air Force for Acquisition (SAF/AQ) shall:

2.2.1. Require Program Managers to provide relevant documents for their programs and activities to AF/A10P for review of compliance with existing arms control agreements prior to program review milestones and throughout the program's life cycle as appropriate.

2.2.2. Direct Program Managers to request AF/A10P guidance when any arms control compliance concerns arise with their programs due to changes in the program, changes with international law, or if notified by the Office of the Judge Advocate General, Operations and International Law Division (AF/JAO), IAW AFI 51-401, *Operations Law and the Law of War*.

2.2.3. Ensure assigned Program Element Monitors track funding allocated through the arms control Program Element Code for arms control and nonproliferation agreement-driven requirements within Air Force acquisition programs.

2.3. The Secretary of the Air Force General Counsel (SAF/GC) shall:

2.3.1. Provide legal interpretation of arms control and nonproliferation agreements within the Department of the Air Force.

2.3.2. Advise and assist negotiation of, implementation of, and compliance with, arms control and nonproliferation agreements.

2.4. MAJCOMs, the Air Force District of Washington, and the Air National Guard shall:

2.4.1. Establish a treaty office or point of contact to deal specifically with treaties/agreements applicable to their command. (T-1)

2.4.2. Authorize the appropriate number of billets to support MAJCOM headquarters and subordinate Wing/Unit arms control requirements. (T-1)

2.4.2.1. Designate and appoint in writing a Treaty Compliance Officer/Treaty Compliance Point of Contact to assist Commanders in carrying out their arms control and nonproliferation agreement compliance responsibilities. (T-1) In some cases the Treaty Compliance Officer/Treaty Compliance Point of Contact positions may be identified and resourced from Program Element 35145F. Designated positions may be full-time or part-time depending upon the amount of arms control and nonproliferation agreement compliance requirements. At those locations that do not receive a resourced position because of limited requirements, the installation commander or their designee will be the single treaty compliance point of contact at the installation to interface with the functional authority on treaty compliance matters.

2.4.2.2. Authorize creation of a regionalized Treaty Compliance Officer structure, in situations where the number of Wings/Units with significant arms control and nonproliferation agreement compliance responsibilities exceeds the number of funded Treaty Compliance Officer billets. In a regionalized structure, full-time Treaty Compliance Officers are established at host Wings as Operating Locations of the MAJCOM and are assigned to support multiple Wings and Geographically-Separated Units. (T-1)

2.4.2.3. Ensure that Treaty Compliance Officers at the Wing-level report directly to the Wing Commander or as appropriate based on the Installation/Wing structure. Treaty Compliance Points of Contact designated by the Installation Commander may report directly to the Wing Commander or as appropriate based on the Installation/Wing structure. In the case of a regional structure, the regional Treaty Compliance Officer will report to the MAJCOM as an Operating Location, but should be essentially organized as a member of the Commander's special staff within their respective host Wing. (T-1)

2.4.2.4. Ensure any additional duties to Treaty Compliance Officers and those in Program Element 35145F billets do not interfere with their primary responsibility of ensuring accomplishment of all arms control and nonproliferation agreement compliance requirements. (T-1)

2.4.3. Serve as resource managers, monitoring arms control funding and manpower and work closely with the 35145F Program Element Monitor. (T-1)

2.4.3.1. Monitor manpower authorizations, identify and defend manpower requirements, and recommend changes to Wing Commanders' staff variance outlined in Air Force Manpower Standard 10W100, *Wing Commander's Support Staff*. Ensure that arms control authorizations (identified and resourced in Program Element 35145F) at MAJCOMs, Wings, and other organizations are not moved or reclassified without the prior coordination and concurrence from AF/A10P. (T-1)

2.4.3.2. Manage resources and budget funds for arms control activities and ensure MAJCOM and subordinate requirements are included in budget submissions. (T-1)

2.4.3.2.1. Coordinate with field units to build an annual Execution Plan and submit these requirements to AF/A10P. (T-1)

2.4.3.2.2. Monitor the Execution Plan to ensure all subordinate Wing requirements are identified and defended, as necessary. (T-1)

2.4.4. Identify arms control requests, issues, or concerns to AF/A10P to coordinate expedient resolution, including those involving other DoD components or government agencies. (T-1)

2.4.5. Direct overall arms control implementation for their command and maintain oversight of arms control implementation requirements. (T-1)

2.4.6. Develop implementation guidance for subordinate units based on higher headquarters guidance and coordinate with AF/A10P. (T-1)

2.4.7. Participate in the development of arms control implementation and compliance policy guidance by reviewing and coordinating on higher headquarters directives and instructions, and providing subject matter expertise to Compliance Review Groups, when requested. (T-1)

2.4.8. Maintain oversight of subordinate units' implementation and adherence to arms control and nonproliferation agreements, and ensure consistent application across the MAJCOMs. (T-1)

2.4.9. Provide AF/A10P with baseline information associated with compliance responsibilities for agreements listed in Attachment 2 affecting MAJCOMs, and for future treaties as instructed by AF/A10P. (T-1) The baseline information will include:

2.4.9.1. An Office of Primary Responsibility and Point of Contact.

2.4.9.2. A summary of organizational assets and activities covered by the subject agreement (e.g., items of inspection).

2.4.9.3. A detailed listing of specific agreement provisions and the methods for carrying out the provisions.

2.4.9.4. An explanation of how the MAJCOM carries out reporting requirements.

2.4.10. Develop and direct, as appropriate, treaty implementation and compliance plans or MAJCOM Supplements to implement higher headquarters guidance on arms control and nonproliferation agreements.

2.4.11. Coordinate all implementation and compliance plan waiver requests with AF/A10P.

2.4.12. Educate and train MAJCOM headquarters, Numbered Air Force, and Wing-level personnel whose duties involve specific arms control responsibilities or promoting awareness of arms control throughout the command. MAJCOM commanders will ensure training and education of these personnel, with assistance from AF/A10P as requested.

2.4.13. All Air Force organizations shall refer international arms control issues or questions involving special access programs to the Air Force Office of Special Access Programs, Security and Information Protection (SAF/AAZ) or the Air Force Office of Special Investigations Office of Special Projects (AFOSI/PJ), as appropriate. (T-1)

2.5. (Added-AFSPC) Wing Commanders shall:

2.5.1. **(Added-AFSPC)** Establish a treaty office or point of contact and alternate to deal specifically with treaties/agreements applicable to their command. (T-2)

2.5.2. **(Added-AFSPC)** As appropriate, refer arms control-related questions or issues (from planned activity to on-site inspection discrepancies) to the AFSPC Treaty Office.

2.5.3. **(Added-AFSPC)** Develop treaty implementation and compliance plans, as applicable, that implement higher headquarters and MAJCOM guidance on arms control and nonproliferation treaties and agreements. The development and execution of these plans must ensure the wing's full implementation of, and subsequent compliance with, all treaties and agreements that have entered into force. Wings may request a waiver from their MAJCOM exempting them from developing an implementation and compliance plan for a particular treaty or agreement if they conclude it does not apply to their facilities, equipment, or operations. (T-2)

2.5.4. **(Added-AFSPC)** Ensure offices with treaty reporting and notification requirements develop a Continuity of Operations (COOP) Plan or procedures to ensure the unit is capable of conducting its mission essential functions under all threats and conditions. As an alternative, ensure the treaty office is included in the wing's COOP Plan.

2.5.5. **(Added-AFSPC)** Provide treaty funding requirements to the AFSPC Treaty Office, who will consolidate these requirements and submit them to higher headquarters. The AFSPC Treaty Office will ensure that all subordinate Wing requirements are identified and defended, as necessary. (T-2)

2.5.6. **(Added-AFSPC)** Ensure full-time, wing-level Treaty Compliance Officers (TCOs), paid for by Program Element 35145F, are on the Wing Commander's special staff, unless the MAJCOM and wing have reached agreement for other arrangements. Treaty Compliance Points of Contact (POC) designated by the Installation Commander should report directly to the Wing Commander or as appropriate based on the installation/wing structure. (T-2)

2.5.7. **(Added-AFSPC)** Ensure full-time, wing-level TCOs are not assigned additional duties that interfere with their primary responsibility of ensuring accomplishment of all arms control and nonproliferation agreement compliance requirements. (T-2). Commanders may assign additional duties to the Treaty Compliance POC, but these duties should not interrupt the POC's primary responsibility to ensure the wing can accomplish all treaty compliance requirements. If a POC reports to someone other than the Wing Commander, then the POC may not be assigned additional duties without coordination with and concurrence from the POC's supervising organization. (T-3)

2.5.8. **(Added-AFSPC)** Ensure local escorts supporting inspection activities report to the wing-level treaty compliance personnel and be relieved of all other assigned responsibilities while performing escort duties associated with arms control inspection activities/events.

Chapter 3

GUIDANCE AND PROCEDURES

3.1. Air Force Treaty Compliance Officer Recognition Program.

3.1.1. The program annually recognizes outstanding contributions to Air Force arms control implementation and compliance and will be managed in accordance with AFI 36-2805, *Special Trophies and Awards Programs*. Recognition consists of a certificate and AF/A10P memento.

3.1.2. Recognition eligibility requires the individual to be a U.S. Government civilian or military member responsible for Air Force nonproliferation agreement implementation and compliance at the Headquarters Air Force, MAJCOM, Numbered Air Force, Wing, or Direct Reporting Unit level.

3.1.3. Nomination packages will be submitted in accordance with AFI 36-2805 and with the solicitation message transmitted by AF/A10P.

3.1.4. AF/A10P is the awarding authority and Office of Primary Responsibility of the program.

3.2. Arms Control Education and Training.

3.2.1. AF/A10P arms control education and training includes:

3.2.1.1. Air Force arms control policy, guidance, and training material (located on the AF/A10P webpage through the Air Force Portal). This includes directives regarding new treaties or modifications to existing treaties and/or agreements, briefings, checklists, background papers, computer-based training modules, and other training aids (e.g., *Treaty Compliance Officer Handbook*) to guide MAJCOM and Wing-level implementation and compliance activities.

3.2.1.2. Annual Air Force Treaty Compliance Officer Training Course or an AF/A10P-designated equivalent course.

3.2.1.3. Training on treaties that do not have an ongoing or consistent inspection schedule (e.g., Chemical Weapons Convention or International Atomic Energy Agency (IAEA) Safeguards and Additional Protocol).

3.2.1.4. Arms Control Workshops. Workshops cover items tailored for a specific arms control and nonproliferation agreement(s) (e.g., guidance, policy, lessons learned, training, or resources).

3.2.1.5. Temporary duty funding, as required/requested, for subordinate organization's travel related to applicable arms control and nonproliferation agreement courses.

3.2.2. Minimum Treaty Compliance Officer/Treaty Compliance Point of Contact requirements are as follows:

3.2.2.1. Review of orientation materials including the *Treaty Compliance Officer Handbook* and relevant arms control and nonproliferation agreement briefings to ensure Treaty Compliance Officers/Treaty Compliance Points of Contact understand applicable MAJCOM Supplements and Implementation and Compliance Plans.

3.2.2.2. Completion of the relevant Computer Based Training modules on the AF/A10P page on the Air Force Portal as determined by the MAJCOM. Treaty Compliance Officers and Treaty Compliance Points of Contact are expected to complete the Computer Based Training modules on an annual basis following initial completion. NOTE: This requirement does not include the Chemical Weapons Convention Base Assistance Team Computer Based Training, which is only intended for Treaty Compliance Officers assigned to the Base Assistance Team.

3.2.2.3. Attendance at applicable education and training courses for each arms control and nonproliferation agreement affecting the command. These courses should be completed at the earliest opportunity following assignment to the command and include the Air Force Treaty Compliance Officer Training Course, as well as Defense Threat Reduction Agency treaty courses and training for arms control and nonproliferation agreement reporting systems. Wing Treaty Compliance Officers should consult with their MAJCOM for guidance on applicable courses to ensure proper attendance.

3.2.2.4. Observation of actual or mock inspections for each arms control and nonproliferation agreement for which the MAJCOM has responsibilities. This should be completed at the earliest opportunity following assignment to the command for the Treaty Compliance Officer/Treaty Compliance Point of Contact to gain knowledge and understanding of their roles and responsibilities.

3.2.2.5. Periodic reviews of Wing-level plans, the AF/A10P page on the Air Force Portal, and the quarterly *Arms Control Bulletin* to maintain knowledge of changes to treaties, agreements, MAJCOM Supplements, implementation and compliance guidance, and Air Force implementation and compliance processes.

3.2.2.6. **(Added-AFSPC)** As determined by the TCO or Treaty Compliance POC, provide awareness training, through background papers and briefings, to wing-level leadership and key personnel on arms control, its impact, and the obligations it imposes. (T-2)

3.2.2.7. **(Added-AFSPC)** As determined by the TCO or Treaty Compliance POC, brief all newly assigned Wing Commanders, respective Vice Commanders, and tenant organization leadership on arms control obligations impacting their organization. (T-3)

3.2.2.8. **(Added-AFSPC)** As determined by the TCO or Treaty Compliance POC, provide education and training to wing-level personnel who will assist in carrying out arms control obligations and activities (e.g., inspection escorts, drivers, and others identified in the wing-level inspection and compliance plan). (T-2)

3.2.2.9. **(Added-AFSPC)** The wing-level TCO will establish, implement, and track a schedule to review and exercise compliance plans and MAJCOM supplements for treaties that have recurring impacts, at least annually, unless an actual inspection occurs during that timeframe.

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(AFSPC)

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Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

Department of Defense Directive 2060.1, *Implementation of, and Compliance with, Arms Control Agreements*, 9 January 2001

Department of Defense Directive 5000.01, *The Defense Acquisition System*, 20 November 2007

Air Force Manpower Standard 10W100, *Wing Commander's Support Staff*, 11 August 2015

Air Force Policy Directive 16-6, *International Arms Control and Nonproliferation Agreements, and the DoD Foreign Clearance Program*, 27 March 2018

Air Force Policy Directive 13-5, *Air Force Nuclear Mission*, 17 July 2018

Air Force Instruction 33-360, *Publications and Forms Management*, 1 December 2015

Air Force Instruction 51-401, *Operations Law and the Law of War,* 5 September 2014

Air Force Instruction 63-101/20-101, *Integrated Lifecycle Management,* 9 May 2017

Air Force Manual 33-363, *Management of Records*, 1 March 2008

AFI 36-2805, *Special Trophies and Awards Programs, 21 June 2018*

HAF Mission Directive 1-60**,** *Deputy Chief of Staff of the Air Force, Strategic Deterrence and Nuclear Integration,* 22 June 2017

Treaty Compliance Handbook, July 2017

Prescribed Forms

None

Adopted Forms

Air Force Form 847, *Recommendation for Change of Publication*

Abbreviations and Acronyms

(Added-AFSPC) AFSPC—Air Force Space Command

CFE—Conventional Armed Forces in Europe Treaty

(Added-AFSPC) COOP—Continuity of Operations

DoD—Department of Defense

IAEA—International Atomic Energy Agency

ICBM—Intercontinental Ballistic Missile

INF—Intermediate-Range and Shorter-Range Nuclear Forces Treaty

MAJCOM—Major Command

New START—New Strategic Arms Reduction Treaty

NPT—Nuclear Non-proliferation Treaty

(Added-AFSPC) POC—Point of Contact

SLBM—Submarine-launched Ballistic Missile

R.F.—Russian Federation

(Added-AFSPC) TCO—Treaty Compliance Officer

U.S.—United States

USAFE—United States Air Forces in Europe

Terms

Arms Control—Any plan, treaty, or agreement to limit the number, size, or type of weapons or armed forces of the participating nations.

Compliance Review Group—DoD body chaired by the appropriate Treaty Manager which includes members provided by the OUSD(P), the General Counsel of the DoD, the Chairman of the Joint Chiefs of Staff to monitor compliance of all DoD activities and to coordinate DoD guidance on issues arising from questions of compliance.

Enter into Force—When the terms and provisions of a particular treaty or agreement come into effect.

Execution Plan—Developed to ensure an equitable distribution of the President's Budget consistent with accomplishing Air Force program objectives and to produce a plan that executes within budgetary limitations while supporting the AF mission.

Nonproliferation—The prevention of an increase or spread of something, especially the number of countries possessing nuclear weapons.

Program Element Monitor—Person within Headquarters Air Force, office of primary responsibility who is directly responsible for a given program and all documentation needed to harmonize the program in the budget.

Program Manager—As defined in DoD Directive 5000.01, *The Defense Acquisition System,* the designated individual with the responsibility for and authority to accomplish program objectives for development, production, and sustainment to meet the user's operational needs

Program Objective Memorandum—The final product of the programming process within the DoD, a Component's Program Objective Memorandum displays the resource allocation decisions of the military department in response to, and in accordance with, the Defense Planning Guidance. The Program Objective Memorandum shows programmed needs five years hence.

Treaty Compliance Officer—Individual designated to perform treaty compliance activities at MAJCOM and Wing-level.

Treaty Compliance Point of Contact—Individual designated to perform treaty compliance activities at Wing-level as their secondary duty.

Treaty Manager—Individual in government services, agencies, activities, or commercial facilities with responsibilities generally associated with implementation and compliance of a particular arms control agreement.

Attachment 2

ARMS CONTROL TABLES

Table A2.1. Summary of Arms Control and Nonproliferation Treaties and Agreements Currently Applicable to the Air Force

The below list of treaties, agreements, and commitments is provided for information purposes only and is not intended to be comprehensive. Do not rely on the abbreviated treaty description to determine potential treaty obligations. All questions regarding treaty applicability and/or obligations should be directed to the servicing legal office or AF/A10.		
TREATY / AGREEMENT	DESCRIPTION	AIR FORCE FACILITIES, PROGRAMS, PLATFORMS AFFECTED
New Strategic Arms Reduction Treaty (START) Treaty	This treaty between the United States and the Russian Federation (RF) requires each side to reach the following central limits for strategic offensive nuclear arms by February 2018 or, if applicable, to remain below these numbers: 700 deployed intercontinental ballistic missiles (ICBM), submarine-launched ballistic missiles (SLBM), and heavy bombers; 800 deployed and non-deployed ICBM launchers, SLBM launchers, and heavy bombers; and 1550 warheads on deployed ICBMs and SLBMs and warheads counted for heavy bombers (by the terms of the treaty, one warhead per heavy bomber regardless of loading).	All ICBMs, ICBM launchers, and heavy bombers equipped for nuclear armaments are subject to the treaty. In addition, all facilities where these are based, stored, maintained, converted/eliminated, and tested are subject to inspection. Production facilities are declared under New START but are not subject to inspection.
Ballistic Missile Launch Notification Agreement	This agreement requires notification of launches of ICBMs and SLBMs by the U.S. or the RF no less than 24 hours in advance. Information includes planned date of launch, launch area, and area of impact.	The agreement impacts ICBM and certain space launch vehicle launches.

Agreement on Measures to Reduce the Risk of Outbreak of Nuclear War	The United States and the RF agree to immediately notify the other in event of accident or incident resulting in nuclear detonation, and detection of unidentified objects by, or interference of, early warning systems. Parties also agree to advance notification of planned missile launches traveling beyond national territory and in the direction of the other party.	The agreement provides for advance notification of missile launches in the direction of the RF.
Major Strategic Exercise Notification Agreement	Requires the United States and the RF to provide annual notification of one major strategic exercise which includes heavy bomber participation. Notification must be made at least 14 days in advance. Requirements of the 1990 agreement are incorporated into New START Protocol (Part 4, Section III, #5).	The agreement impacts heavy bomber exercises.
Intermediate-Range and Shorter-Range Nuclear Forces (INF) Treaty	The INF Treaty requires permanent elimination of all U.S. and RF ground-launched intermediate-range (1,000 - 5,500 km) and shorter-range (500 - 1,000 km) ballistic missiles and cruise missiles.	The treaty eliminated the ground-launched cruise missile BGM-109G and requires notification of some research and development launches that meet specified criteria.
Limited Test Ban Treaty	The Limited Test Ban Treaty prohibits nuclear explosions in the atmosphere, outer space, or underwater.	N/A

Threshold Test Ban Treaty	The Threshold Test Ban Treaty prohibits the United States or the RF from underground testing of nuclear weapons with a yield greater than 150 kilotons. The treaty's verification protocol allows parties to measure yields of nuclear tests through methods including on-site inspection.	The treaty applies only to the following three test sites: for the United States, the Nevada National Security Site, and for the RF, the Northern Test Site on Novaya Zemlya and the Semipalatinsk Test Site, now located in Kazakhstan. Communications are made through the Nuclear Risk Reduction Center.
Peaceful Nuclear Explosions Treaty	The Peaceful Nuclear Explosions Treaty prohibits any nuclear explosion by the United States or the RF exceeding a yield of 150 kilotons, any group explosion exceeding a yield of 150 kilotons that will not permit the identification and determination of the yield of each individual explosion in the group, or any group explosion with an aggregate yield of more than 1.5 megatons.	N/A

Nuclear Non-Proliferation Treaty (NPT)	The NPT recognizes five nuclear weapon states (the United States, RF, United Kingdom, France, and China); all other States Parties are non-nuclear weapon states. It obligates nuclear weapon states not to transfer nuclear weapons to non-nuclear weapon states or to assist these states in manufacturing or otherwise acquiring nuclear weapons. All state parties to the treaty agree, however, to take steps to ensure that all NPT non-nuclear weapon states can utilize "nuclear energy for peaceful purposes." Non-nuclear weapon states also agree to accept safeguards to prevent the diversion of nuclear material and technology from peaceful uses to nuclear weapons or other nuclear explosive devices.	See "IAEA Safeguards Agreement" and "IAEA Additional Protocol" below.
IAEA Safeguards Agreements	These bilateral agreements negotiated with the IAEA permit the international agency to verify a state's declared types, quantities, and locations of nuclear material. All NPT non-nuclear weapon states must accept IAEA safeguards.	The United States is a nuclear weapon state under the NPT. The United States-IAEA safeguards agreement includes a "national security exclusion" – all U.S. military sites, to include all Air Force sites, are not subject to safeguards.

IAEA Additional Protocol	The Additional Protocol, developed following the discovery of Iraq's illicit nuclear weapons program after the first Gulf War, supplements a state's safeguards agreement. It grants the IAEA inspection rights to investigate potential discrepancies, undeclared stockpiles, and/or covert efforts to develop nuclear weapons. The United States concluded an Additional Protocol with the IAEA to demonstrate its commitment to the NPT and its support of the increased transparency provided for by the protocol.	As with the U.S.-IAEA safeguards agreement, the U.S.-IAEA Additional Protocol includes a "national security exclusion" for all U.S. military sites. Air Force sites are not subject to IAEA inspection. U.S. civilian nuclear sites, however, are subject to inspection. As such, there is a risk that inspections may occur at sites that are near Air Force facilities or sites where the Air Force has active programs or other equities. MAJCOMs are responsible for conducting Security Vulnerability Assessments for applicable Air Force facilities. and programs.
Biological Weapons and Toxin Convention	The Biological Weapons and Toxin Convention is a multilateral convention prohibiting development, stockpiling, acquisition, and retaining of: (1) microbial or other biological agents or toxins that have no justification for prophylactic, protective or other peaceful purposes and, (2) weapons, equipment, or means to deliver such agents or toxins for hostile purposes or in armed conflict.	Facilities, if visitation protocols are developed and implemented. Provide information on Air Force biological defense programs for annual Confidence Building Measures submission to the United Nations. Provide response to annual Congressional Treaty Chemical and Biological Weapons Compliance Review Group data call for chemical and biological defense programs and research.
Biological Weapons Trilateral Agreement	The Trilateral Agreement between the United States/United Kingdom/RF is a joint statement designed to alleviate U.S. and United Kingdom concerns on Russian noncompliance with the Biological Weapons and Toxin Convention.	Facility inspections of sites identified in United Nations Biological Weapons and Toxin Convention confidence-building declarations.

Chemical Weapons Convention	The Chemical Weapons Convention is a multilateral convention banning the production, development, possession, transfer, and use of chemical weapons by the signatories. Parties must destroy all chemical stockpiles and chemical weapon production facilities.	Air Force facilities are not subject to routine inspections, except in cases where recovered weapons are temporarily stored awaiting destruction. All Air Force facilities are subject to challenge inspections.
Conventional Armed Forces in Europe (CFE) Treaty	The CFE Treaty reduces conventional forces of 30 North Atlantic Treaty Organization and former Warsaw Pact countries to eliminate the capability to launch a surprise attack and to initiate large-scale offensive action in Europe. It restricts the amount of military equipment a group of States Parties could concentrate in designated sections of Europe and includes a detailed verification regime.	Numerical limits on Europe-located combat aircraft and combat helicopters, and accounting for combat support helicopters. United States Air Forces in Europe (USAFE) bases, units and equipment are subject to inspections by representatives from other participating States.
CFE 1A Agreement	The CFE 1A Agreement sets numerical limits on military manpower levels in Europe.	Numerical limits on military manpower in Europe.
Vienna Document 2011	It is a politically-binding confidence and security building measure among participating States of the Organization for Security and Cooperation in Europe. It limits the number and scope of large- scale military activities. It requires military information exchange and prior notification of exercises.	USAFE must track assets (e.g., combat aircraft, helicopters) and provide reports consistent with required information exchanges. Certain USAFE bases are subject to inspections and evaluations by representatives from other participating States.

Convention on Certain Conventional Weapons	The Convention on Certain Conventional Weapons consists of five protocols addressing non-detectable fragment weapons: landmines, booby traps and other devices, incendiary weapons, blinding lasers, and explosive remnants of war.	The United States is party to the Convention on Certain Conventional Weapons. Air Force antipersonnel landmines comply with Convention on Certain Conventional Weapons requirements and are equipped with self-destruct and self-deactivation mechanisms. DoD policy is that the United States will not develop lasers intended for blinding. Lasers that are part of Air Force systems comply with the Convention on Certain Conventional Weapons protocol addressing blinding laser weapons.
Open Skies Treaty	The Open Skies Treaty is a multi-lateral treaty consisting of 34 State Parties (primarily North Atlantic Treaty Organization and Warsaw Pact countries). It establishes a regime of unarmed aerial observation flights over the territories of its signatories. The treaty is designed to enhance mutual understanding and confidence by giving all participants, regardless of size, a direct role in gathering information through aerial imaging on military forces and activities of concern to them.	The Air Force provides dedicated observation aircraft equipped with treaty- specified sensors. The Air Force operates the aircraft during observation missions over foreign states parties and provides logistical support for missions flown by foreign states parties over the United States. The Air Force also provides a media processing capability.

Outer Space Treaty	Article IV of the Outer Space Treaty prohibits signatories from placing nuclear weapons or other weapons of mass destruction in orbit or on celestial bodies, and also limits use of the moon and other celestial bodies exclusively to "peaceful purposes."	U.S. obligations under the Outer Space Treaty must be taken into account when planning and executing Air Force activities, operations, and acquisitions.
Environmental Modification Convention	The Environmental Modification Convention prohibits use of environmental modification techniques having widespread, long-lasting or severe effects as the means of destruction, damage, or injury to another party for military purposes.	Air Force acquisitions, activities, and operations must comply with U.S. obligations under the Environmental Modification Convention.
Proliferation Security Initiative	The Proliferation Security Initiative is an international cooperative effort focused on stopping trafficking of Weapons of Mass Destruction, their delivery systems, and related materials to and from state and non-state actors of proliferation concern.	The Air Force provides planning support as required for Proliferation Security Initiative activities; coordinates subordinate organizations' participation in Proliferation Security Initiative activities; provides support to operational elements; provides necessary operations, communications, and logistics support; and participates as observers or controllers during exercises, as required.
Missile Technology Control Regime	The Missile Technology Control Regime provides export policy guidelines meant to limit the spread of missiles and unmanned delivery systems capable of carrying at least a 500 kilogram payload traveling at least 300 kilometers.	Under this informal political understanding among states, the sale of Air Force missiles and unmanned delivery systems captured under the Missile Technology Control Regime is restricted.
Hague Code of Conduct Against Ballistic Missile Proliferation	Hague Code of Conduct Against Ballistic Missile Proliferation is a political commitment to "exchange pre-launch notifications on their Ballistic Missile and Space Launch Vehicle launches and test flights."	The Air Force is responsible for notification of applicable DoD space launches and ICBM launches and also contributes to the annual report sent to other participating states (138 states as of June 2016).